

Telangana Aqua-culture Seed (Quality Control) Act, 2006

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State of Telangana - Act

Telangana Aqua-culture Seed (Quality Control) Act, 2006

TELANGANA

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Telangana Aqua-culture Seed (Quality Control) Act, 2006

Act 24 of 2006

Published on 19 April 2006

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Telangana Aqua-culture Seed (Quality Control) Act, 2006

(Act

No. 24 of 2006

)

Last Updated 10th January, 2020

The Andhra Pradesh Aqua-culture Seed (Quality Control) Act, 2006 received the assent of the Governor on the 19th April, 2006. The said Act in force in the combined State, as on 02.06.2014, has been adapted to the State of Telangana, under section 101 of the Andhra Pradesh Reorganisation Act, 2014 (Central Act 6 of 2014) vide. the Telangana Adaptation of Laws Order, 2016, issued in G.O.Ms.No.45, Law (F) Department, dated 01.06.2016.

1.

Short title, extent and commencement.

(1)

This Act may be called the [Telangana]

[Substituted by G.O.Ms.No.45, Law (F) Department, dated 01.06.2016.]

Aqua-culture Seed (Quality Control) Act, 2006.

(2)

It extends to the whole of the State of [Telangana]

[Substituted by G.O.Ms.No.45, Law (F) Department, dated 01.06.2016.]

.

(3)

It shall come into force on such date as the State Government may, by notification, appoint.

2.

Definitions.

- In this Act, unless the context otherwise requires,-

(1)

'Aqua-culture' includes culture of fish or prawn or shrimp or crab or any other aquatic animals and aquatic plants in fresh water or marine waters or brackish waters;

(2)

'Aqua Farm' means a place with water body used for Aqua-culture;

(3)

'Aqua Farmer' means an individual or a group of individuals or a firm or a Company or any other juristic person owning or having taken on lease a land or a water body and having taken up Aqua-culture in ponds or in confined waters or in structures erected in them or in any other manner;

(4)

'Aqua-culture Seed' means larval early stages or juveniles or any other classes of seeds of aquatic life, including plant, plants origin, used for stocking in confined waters such as tanks, lakes, ponds and pens or cages or any other structures erected in water, and includes, -

(i)

seeds of cultivable aquatic animals such as fin fish, cat fish, murel including ornamental fish and larvicidal fish reared in fresh water, marine and brackish water and in aquaria;

(ii)

seeds of shell fish, such as prawn, shrimp, lobsters, crab, gastropods, bivalves and such other crustaceans and mollusees;

(iii)

fish larval stages (called as egg, hatchlings, spawn, fry, fingerlings, advanced fingerlings, yearlings), larval stages of prawn, shrimp, lobsters, crabs (called as nauplius, metanauplius, zoea, megalopamysis, post larvae) and larval stages of mollusees (called veliger, spat etc.);

(5)

'Aqua-culture Seed Laboratory' means the Aquaculture Seed Laboratory established under section 9 and this includes State Aqua-culture Seed Laboratory and Regional Aqua-culture Seed Laboratories;

(6)

'Aqua-culture Seed Analysis' means procedures of Aqua-culture Seed Analysis to verify the required standards of size, purity and freedom from infectious diseases;

(7)

'Aqua-culture Seed Analyst' means an Aqua-culture Seed Analyst appointed under section 20;

(8)

'Aqua-Culture Seed Inspector' means an Aquaculture Seed Inspector appointed under section 21;

(9)

'Committee' means the Aqua-culture Seed Committee constituted under sub-section (1) of section 3 and sub-section (1) of section 4;

(10)

'Container' means a box, bottle, casket, tin, barrel, case, receptacle, sack, wrapper or other thing in which any

aqua-culture seeds are placed;

(11)

'Export' means taking Aqua-culture seed from India and [Telangana]

[Substituted by G.O.Ms.No.45, Law (F) Department, dated 01.06.2016.]

State to a place outside India and [Telangana]

[Substituted by G.O.Ms.No.45, Law (F) Department, dated 01.06.2016.]

State;

(12)

'Fisherman' means a person who is involved in capture fishery activity by occupation and also includes fishermen by birth;

(13)

'Fish Seed Farm' means a place with structures for rearing of early stages of fish seed such as spawn or hatchlings to the stages of fry or fingerlings or advanced fingerlings;

(14)

'Government' means the State Government of [Telangana]

[Substituted by G.O.Ms.No.45, Law (F) Department, dated 01.06.2016.]

;

(15)

'Hatchery' means a place where brooders are maintained and used for production of Aqua-culture seed and further rearing of the seed for supply to Aqua Farmers and this includes back yard hatchery or part of the farm including rearing in nurseries;

(16)

'Import' means bringing Aqua-culture seed into India and [Telangana]

[Substituted by G.O.Ms.No.45, Law (F) Department, dated 01.06.2016.]

State from a place outside India and [Telangana]

[Substituted by G.O.Ms.No.45, Law (F) Department, dated 01.06.2016.]

State;

(17)

'kind' means one or more related species or such species of aquatic animals or aquatic plants each individually or collectively are known by one common name such as Carps, Shrimp, Prawn, Crab, Lobsters, Sea weeds, Aquarium plants etc;

(18)

'Notification' means a notification published in the [Telangana]

[Substituted by G.O.Ms.No.45, Law (F) Department, dated 01.06.2016.]

Gazette and the word 'Notified' shall be construed accordingly;

(19)

'Notified kind or variety' in relation to any Aquaculture seed means any kind or variety thereof notified under section 10;

(20)

'Prescribed' means prescribed by rules made under this Act;

(21)

'Quarantine' means a place of isolation for the purpose of observing animals and or plants suspected of harbouring an infectious disease prior to the introduction of / import of such species to the new environment / country;

(22)

'Variety' means a sub-division of a kind identifiable by morphology, growth, yield, seed or other characteristics;

(23)

'Court' means any Court not less than 1st Class Munsif Magistrate as notified by the Government for the purpose.

Chapter - II

3.

Constitution of State Level Aquaculture Seed Committee.

- The Government may, as soon as may be after the commencement of this Act, constitute a committee called the State Aqua-culture Seed Committee (a) to advise the Government on matters arising out of the administration of this Act at

State level; (b) to carry out such functions as to Registration and Seed Certification; and (c) any other functions assigned to it by or under this Act.

(2)

The Committee shall consist of the following members namely:-

(i)

a Chairman to be nominated by the Government;

(ii)

Commissioner of Fisheries / Director of Fisheries shall be the Member Convenor;

(iii)

six persons to be nominated by the Government to represent such interests as the Government thinks fit of whom not less than two persons shall be representatives of Aqua Farmers or hatchering operators;

(iv)

three persons having knowledge in aqua-culture or working in an organisation connected with it to be nominated by the Government.

(3)

The members of the Committee shall, unless their seats become vacant earlier by resignation, death or otherwise be entitled to hold office for a period of two years and shall be eligible for re-nomination not exceeding two terms at a stretch.

(4)

The Committee may subject to the previous approval of the Government make bye-laws fixing the quorum and regulating its own procedures and the conduct of all business to be transacted by it.

(5)

The Committee may appoint one or more subcommittees consisting wholly of members of the Committee or wholly of other persons or partly of members of the committee and partly of other persons, as it thinks fit, for the purpose of discharging such of its functions as may be delegated to such sub-committee or sub-committees by the Committee.

(6)

The functions of the Committee or any such subcommittee thereof may be exercised notwithstanding any vacancy therein.

(7)

The Government may appoint an officer to be the Secretary of the Committee from the Department of Fisheries, not below the rank of Joint Director of Fisheries and shall provide the Committee with such clerical and other staff as the Government considers necessary.

Chapter - III

4.

Constitution of District Level Aqua-culture Seed Committee.

(1)

The Government may, by notification constitute Aqua-culture Seed Committee at district level, to advise the State Aqua culture Seed Committee on all matters relating to registration and certification of hatcheries of fish / shrimp/ scampi hatcheries and to enforce the provisions of the Act and the rules made thereunder.

(2)

This District Committee shall consist of the following members, namely:-

(i)

the District Collector will be the Chairman of the District Committee;

(ii)

a nominee of Commissioner of Fisheries / Director of Fisheries shall be a Member;

(iii)

one member not below the rank of District Officer of Fisheries Department of the concerned district;

(iv)

two members, to be nominated by the Government from out of the persons employed by the Marine Products Export Development Authority or [Sri Venkateswara Veterinary University]

[See now P.V.Narsimha Rao Telangana Veterinary University Act, 2005 (Act No.18 of 2005, amended by Act No.15 of

2017).]

not below the rank of Associate Professors;

(v)

four persons, to be nominated by the Government to represent such interests as it thinks fit of whom not less than two persons shall be representatives of Hatcheries and Aqua Farmers.

(3)

A member of the District Committee may unless his seat becomes vacant earlier by resignation or otherwise, be entitled to hold office for a period of two years from the date of assumption:

Provided that a person nominated under clause (iii) or clause (iv) of sub-section (2) shall hold office, so long as he holds the appointment by virtue of which his nomination was made.

5.

Other Committees.

- The District Committee may appoint as many Committees as it deems fit consisting wholly of the members of the District Committee or wholly of other persons or partly of members of the District Committee and partly of other persons as it thinks fit to exercise such powers and perform such duties as may be delegated to them, subject to such conditions as the District Committee may think fit.

6.

Proceedings of District Committee not to be invalid by reason of any vacancy therein.

- No proceedings of the District Committee or any Committee thereof shall become invalid merely by reason of the existence of any vacancy therein or any defect in the constitution thereof.

7.

Procedure for District Committee.

- The District Committee may, subject to the previous approval of the State Aqua-culture Seed Committee, make bye-laws for the Committee for the purpose of regulating its own procedure and the procedure of any sub-committee thereof and the conduct of all business to be transacted by the Committee or as the case may be the sub-committees.

8.

Secretary and Other Officers.

- The Government may,-

(i)

appoint an Officer of the Fisheries Department not below the rank of Assistant Director of the concerned district as Member Secretary of the District Committee; and

(ii)

provide the District Committee with such technical and other staff as the Government considers necessary.

Chapter - IV

9.

Establishment of Aqua-culture Seed Laboratory.

(1)

The Government may, by notification establish one State level and one or more Regional Aqua-culture Seed Laboratories or declare any seed laboratory as an Aquaculture Seed Laboratory where analysis of seeds of any notified kind or variety shall be carried out by Seed Analysts under this Act in the prescribed manner and to carry out any other functions entrusted to it by or under this Act.

(2)

such laboratories referred to under sub-section (1) shall also act as nodal labs for control and harmonisation of laboratories established in the private sector.

Chapter - V

10.

Powers to notify kinds or varieties of Aqua-culture seeds.

(1)

If the Government, after consultation with the State Aqua-culture Seed Committee, is of opinion that it is necessary or expedient to regulate the quality of Aquaculture seed of any kind or variety to be sold for purposes of Aqua-culture, it may, by notification declare such kind or variety to be a notified kind or variety for the purposes of this Act and different

kinds or varieties may be notified for different Districts or for different areas thereof.

(2)

Government may also by notification ban / prohibit collection / sale of Aqua seed from natural sources for any reason as a conservation measure.

11.

Powers to specify size, purity and freedom from disease, infections of Aqua-culture seed.

- The Government may, after consultation with the State Aqua-culture Seed Committee and by notification specify,-

(a)

the minimum limits of size, purity and freedom from disease, infections of Aqua-culture seed with respect to any Aqua-culture seed of any notified kind or variety;

(b)

the mark or label to indicate that such Aqua-culture seed confirms to the minimum limits of size, purity, source of seed and freedom from disease, infections specified under clause (a) and the particulars as may be specified from time to time by Government which such mark of label may contain.

12.

Regulation of sale of Aqua-culture seeds of notified kinds or varieties.

- No person shall, himself or by any other person on his behalf, carry on the business of selling, keeping for sale, offering to sell, bartering or otherwise supply any aquaculture seed of any notified kind or variety, unless,-

(a)

such Aqua-culture seed identifiable as to its kind or variety;

(b)

such Aqua-culture conforms to the minimum limits of size, purity and freedom from disease, infections specified under clause (a) of section 11;

(c)

such Aqua-culture seed conforms to the standards for quarantine measures, as may be prescribed from time to time;

(d)

the container of such Aqua-culture seed bears in the prescribed manner, the mark or label containing the correct particulars thereof, specified under clause (b) of section 11; and

(e)

he complies with other requirements as may be prescribed.

13.

Powers of Aquaculture Seed Inspector.

(1)

The Aqua-culture Seed Inspector may,-

(a)

enter and search the premises of hatcheries and fish seed farms at all reasonable times, with such assistance, if any, as he considers necessary, any place in which he has reason to believe that an offence under this Act has been or is being committed and order in writing the person in possession of any seed in respect of which the offence has been or is being committed, not to dispose of any stock of such Aqua-culture seed for a specific period not exceeding thirty days or, unless the alleged offence is such that the defect may be removed by the possessor of the Aqua-culture seed, restrict the stock of such Aquaculture seed from being sold;

(b)

take samples of any Aqua-culture seed of any notified kind or variety from,-

(i)

any 'Hatchery' or 'Fish Seed Farm' or any person selling or offering to sell such Aqua-culture seed; or

(ii)

any person who is in the course of conveying or delivering or preparing to deliver such Aqua-culture seed to a purchaser or a consignee; or

(iii)

a purchaser or a consignee after delivery of such Aqua-culture seed to him.,

(c)

- send such sample for analysis to the Aqua-culture seed analyst for the area within which such sample has been taken;
- (d)
examine any record, register, document or any other material object found in any place mentioned in clause (a)
and seize the same if he has any reason to believe that it may provide evidence of the commission of an offence punishable under this Act; and
- (e)
exercise such other powers as may be necessary for carrying out the purposes of this Act or any rule made thereunder.
- (2)
Where any sample of any Aqua-culture seed of any notified kind or variety is taken under clause (a) of subsection (1), its cost, calculated at the rate at which such Aqua-culture seed is usually sold to the public, shall be paid on demand to the person from whom it is taken.
- (3)
The power conferred by this section includes power to break-open any container in which any Aqua-culture seed of any notified kind or variety may be contained or to collect the Aqua-culture seed from hatchery or pond where any such Aqua-culture seed may be kept for sale:
Provided that, the power to collect the Aqua-culture seed from Hatchery or Fish Seed Farm shall be exercised only after the owner or any other person in occupation of the premises, if present, therein, refuses to allow collection of the Aqua-culture seed from hatchery or fish seed farm on being called upon to do so.
- (4)
Where the Aqua-culture Seed Inspector takes any action under clause (a) of sub-section (1), he shall, as far as possible, call not less than two persons to be present at the time when such action is taken and take their signatures on 12 [Act No.24 of 2006
] a memorandum to be prepared in such form as may be prescribed.
- (5)
The provisions of the Code of Criminal Procedure, 1973(Central Act 2 of 1974). shall, so far as the case may be, apply to any search or seizure under this section as they apply to any search or seizure made under the authority of a warrant issued under section 94 of the said Code.
14.
Grant of Certificate by State Aquaculture Seed Committee.
- (1)
Any 'Hatchery' or 'Fish Seed Farm' or any person selling, keeping for sale, offering to sell, bartering or otherwise supplying any Aqua-culture seed of any notified kind or variety, may if he desires to have such aqua-culture seed certified by the State Aqua-culture Seed Committee, apply to the State Aqua-culture Seed Committee for grant of a certificate for the purpose.
- (2)
Every application under sub-section (1) shall be made in such form, shall contain such particulars and shall be accompanied by such fees as may be prescribed by the Government from time to time.
- (3)
On receipt of any such application for the grant of a certificate through the District Aqua-culture Seed Committee, the State Aqua-culture Seed Committee may, after such enquiry as it thinks fit and after satisfying itself that the Aqua-culture seed to which the application relates to conforms to the prescribed standards, grant a certificate in such form and on such conditions as may be prescribed:
Provided that such standards shall not be lower than the minimum limits of size, purity and freedom from disease, infections as specified for that Aqua-culture seed under clause (a) of section 11.
15.
Revocation of Certificate.
- If the State Aqua-culture Seed Committee is satisfied, either on a reference made to it in this behalf or otherwise, that,-
- (a)
the certificate granted by it under section 14 has been obtained by misrepresentation as to an essential fact; or
- (b)

the holder of the certificate has, without reasonable cause, failed to comply with the conditions subject to which the certificate has been granted or has contravened any of the provisions of this Act or the rules made thereunder, then, without prejudice to any other penalty to which the holder of the certificate may be liable under this Act, the State Aquaculture Seed Committee may, after giving the holder of the certificate an opportunity of showing cause, revoke the certificate.

16.

Procedure to be followed by Aquaculture Seed Inspector.

(1)

Whenever an Aqua-culture Seed Inspector intends to take sample of any Aqua-culture seed of any notified kind or variety for analysis, he shall,-

(a)

give notice in writing, then and there, of such intention to the person from whom he intends to take sample;

(b)

except in special cases provided by rules made under this Act, take three representative samples in the prescribed manner and mark and seal or fasten up each sample in such manner as its nature permits.

(2)

when samples of any Aqua-culture seed of any notified kind or variety are taken under sub-section (1) the Aqua-culture Seed Inspector shall,-

(a)

deliver one sample to the person from whom it has been taken;

(b)

send in the prescribed manner another sample, for analysis to the Aqua-culture Seed Analyst for the area within which such sample has been taken; and

(c)

send the remaining sample in the prescribed manner to the State Aqua-culture Seed Laboratory for analysis as and when required under sub-section (2) of section 17.

(3)

If the person from whom the samples have been taken refuses to accept one of the samples, the Aquaculture Seed Inspector shall send intimation to the Aquaculture Seed Analyst of such refusal and thereupon the Aqua Culture Seed Analyst receiving the sample for analysis shall divide it into two parts and shall seal or fasten up one of those parts and shall cause it, either upon receipt of the sample or when he delivers his report, to be delivered to the Aqua-culture Seed Inspector who shall retain it for production in case legal proceedings are taken.

(4)

Where an Aqua-culture Seed Inspector takes any action under clause (c) of sub-section (1) of section 13,-

(a)

he shall use all despatch in ascertaining whether or not the seed contravenes any of the provisions of section 12 and if it is ascertained that the seed does not so contravene, forthwith revoke the order passed under the said clause or as the case may be, take such action as may be necessary for the return of the stock of the seed seized;

(b)

if he seizes the stock of the seed, he shall, as soon as may be, inform a Court and take its order as to the custody thereof;

(c)

without prejudice to the institution of any prosecution, if the alleged offence is such that the defect may be removed by the possessor of the seed, he shall on being satisfied that the defect has been so rectified, forthwith revoke the order passed under the said clause.

(5)

Where an Aqua-culture Seed Inspector seizes any record, register, document or any other material object under clause (d) of sub-section (1) of section 13, he shall as soon as may be, inform a Magistrate and take his orders as to the custody thereof.

17.

Report of Aquaculture Seed Analyst.

(1)

The Aqua-culture Seed Analyst shall, as soon as may be after the receipt of the sample under sub-section (2) of section 16 analyse the sample at the Regional Aquaculture Seed Laboratory and deliver, in such form as may be prescribed one copy of the report of the result of the analysis to the Aqua-culture Seed Inspector and another copy thereof to the person from whom the sample has been taken.

(2)

After the institution of a prosecution under this Act, the accused vendor or the complainant may on payment of the prescribed fee, make an application to the Court for sending the sample mentioned in clause (a) of sub-section (2) of section 16 to the State Aqua-culture Seed Laboratory for its report and on receipt of the application, the Court shall first ascertain that the mark and the seal or fastening as provided in clause (b) of sub-section (1) of section 16 are intact and may then despatch the sample under its own seal to the State Aqua-culture Seed Laboratory which shall thereupon send its report to the Court in the prescribed form within one week from the date of direction of Court, specifying the result of the analysis.

(3)

The report sent by the State Aqua-culture Seed Laboratory under sub-section (2) shall supersede the report given by the Aqua-culture Seed Analyst under sub-section (1).

(4)

Where the report sent by the State Aqua-culture Seed Laboratory under sub-section (2) is produced in any proceedings under section 22 it shall not be necessary in such proceedings to produce any sample or part thereof taken for analysis.

18.

Restriction on export and import of Aqua-culture seed of notified kinds or varieties.

- No person shall, for the purpose of culture / recreation (including himself) export or import or cause to be exported or imported any Aqua-culture seed of any notified kind or variety unless,-

(a)

it conforms to the minimum limits of size, purity and freedom from disease, infections specified for that Aquaculture seed under clause (a) of section 11; and

(b)

its container bears, in the prescribed manner, the mark or label with the correct particulars thereof specified for that Aqua-culture seed under clause (b) of section 11.

19.

Recognition of Aqua-culture seed certification agencies of foreign countries.

- The Government may, on the recommendation of the State Aqua-culture Seed Committee and, by notification, recognise any Culture Seed Certification Agency established in any foreign country for the purposes of this Act.

Chapter - VI

20.

Aqua-culture Seed Analysts.

- The Government may, by notification appoint such persons as it thinks fit, having the prescribed qualifications, to be Aqua Culture Seed Analysts and define the areas within which they shall exercise jurisdiction.

21.

Aqua-culture Seed Inspectors.

- The Government may, by notification, appoint such persons as it thinks fit, having the prescribed qualifications, to be Aqua culture Seed Inspectors and define the areas within which they shall exercise jurisdiction.

Chapter - VII

22.

Penalty.

- If any person,-

(a)

contravenes any provision of this Act or any rule made thereunder; or

(b)

prevents an Aqua-culture Seed Inspector from taking sample under this Act; or

(c)

prevents an Aqua-culture Seed Inspector from exercising any other power conferred on him by or under this Act, shall, on conviction, be punishable,-

(i)

for the first offence with fine which may extend to minimum of five thousand rupees; and

(ii)

in the event of such person having been previously convicted of an offence under this section, with imprisonment for a term which may extend to minimum of six months or with fine which may extend to minimum of ten thousand rupees or with both.

23.

Forfeiture of property.

- Where a person has been convicted of any offence punishable under this Act or the rules made thereunder, the Aqua-culture seed in respect of which the offence has been committed, may be forfeited to the Government.

24.

Offences by Companies.

(1)

Where an offence under this Act has been committed by a Company, every person who at the time of the offence was committed, was in charge of and was responsible to the company for the conduct of the business of the company, as well as the company, shall be deemed to be guilty of the offence and shall be liable to be proceeded against and punished accordingly:

Provided that nothing contained in this sub-section shall render any such person liable to any punishment under this Act, if he proves that the offence was committed without his knowledge and that he exercised all due diligence to prevent, the commission of such offence.

(2)

Notwithstanding anything contained in sub-section (1) where an offence under this Act has been committed by a company and it is proved that the offence has been committed with the consent or connivance of or is attributable to any neglect on the part of any director, manager, secretary or other officer of the company, such director, manager, secretary or other officer shall also be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

Explanation. - For the purposes of this section,-

(a)

'Company' means any body corporate and includes a firm or other association of individuals; and

(b)

'Director' in relation to a firm means a partner in the firm.

Chapter - VIII

25.

Appeal.

(1)

Any person aggrieved by a decision of the District Aqua-culture Seed Committee may within thirty days from the date on which the decision is communicated to him and on payment of such fees as may be prescribed, prefer an appeal to the State Aqua-culture Seed Committee.

(2)

Any person aggrieved by a decision of the State Aqua-Culture Seed Committee may within thirty (30) days from the date on which the decision is communicated to him and on payment of such fees as may be prescribed, prefer an appeal to the Government:

Provided that the appellate authority may entertain an appeal after the expiry of the said period of thirty days if it is satisfied that the appellant was prevented by sufficient cause from filing the appeal in time.

(3)

On receipt of an appeal under sub-section (1) and sub-section (2), the appellate authority shall, after giving an opportunity of being heard dispose of the appeal as expeditiously as possible.

(4)

Every order passed by the State Aqua-Culture Seed Committee on an appeal preferred to it and the orders passed by

the Government on an appeal preferred to them under this section, shall be final.

26.

Protection of action taken in good faith.

- No suit, prosecution or other legal proceedings shall lie against the Government or any officer or employee of the Government for anything which is in good faith done or intended to be done under this Act or the rules made thereunder.

27.

Persons acting under this Act to be Public Servants.

- Any person acting under this Act shall be deemed to be a Public Servant within the meaning of section 21 of the Indian Penal Code (Central Act 45 of 1860).

28.

Exemption.

- Nothing in this Act shall apply to any Aqua-culture seed of any notified kind or variety grown by a person and sold or delivered by him in his own premises direct to another person for being used by that person for the purpose of recreation.

Chapter - IX

29.

Power to make rules.

(1)

The Government may, by notification, make rules for carrying out all or any of the purposes of this Act.

(2)

In particular and without prejudice to the generality of the foregoing power, such rules may provide for,-

(a)

the functions of the members of State Aquaculture Seed Committee and District Aqua-culture Seed Committees and the travelling and daily allowances payable to members of the Committees and members of any subcommittee appointed under sub-section (5) of section 3 and section 5;

(b)

the functions of the Aqua-culture Seed Laboratory;

(c)

the functions of State Aqua-culture Seed Committee and District Aqua-culture Seed Committee;

(d)

the manner of marking or labelling the container of Aqua-culture seed of any notified kind or variety under clause (d) of section 12 and under clause (b) of section 18;

(e)

the requirements which may be complied with by person carrying on the business referred to in section 12;

(f)

the form of application for the grant of a certification under section 14, the particulars it may contain, the fees which should accompany it, the form of the certificate and the conditions subject to which the certificate may be granted;

(g)

the standards to which Aqua-culture seeds should conform;

(h)

the form and manner in which and the fee on payment of which an appeal may be preferred under section 25 and the procedure to be followed by the Appellate Authority in disposing of the appeal;

(i)

the qualifications and duties of Aqua-culture Seed Analysts and Aqua-culture Seed Inspector;

(j)

the manner in which samples may be taken by the Aqua-culture Seed Inspector, the procedure for sending such samples to the Aqua-culture Seed Analyst or the Aquaculture Seed Laboratory and the manner of analysing such samples;

(k)

the form of report of the result of the analysis under sub-section (1) or sub-section (2) of section 17 and the fees payable in respect of such report under the said sub-section (2);

(l)

the records to be maintained by a person carrying on the business referred to in section 12 and the particulars which such records shall contain;

(m)

issue of licences to 'Hatcheries', 'Fish Seed Farms';

(n)

safeguarding brood fish or prawn or any parent stock of Aquatic animals or plants; and

(o)

any other matter which is to be or may be prescribed.

(3)

Every rule made under this Act, shall, immediately after it is made, be laid down before the Legislature of the State, if it is in session and if it is not in session, in the session immediately following for a total period of fourteen days which may be comprised in one session or in two successive sessions, and if, before the expiration of the session in which it is so laid or the session immediately following, the Legislature agrees in making any modification in the rule or in the annulment of the rule, the rule shall, from the date on which the modification or annulment is notified, have effect only in such modified form or shall stand annulled as the case may be, so however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

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